

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Date Filed:

-----X
AUNDREY MATTHEWS,

Index No.:

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER JASON
SIMMONS (shield #25634), POLICE OFFICER
CHARLIE VIERA (shield #939655), NYPD POLICE
OFFICERS JOHN DOES NUMBERS 1 THROUGH 5
and THE NEW YORK CITY POLICE DEPARTMENT,

Basis for venue:
Incident location

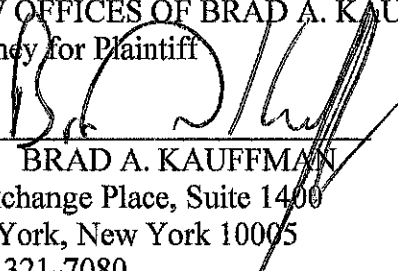
Defendants.
-----X

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: NEW YORK, NEW YORK
September 20, 2024

LAW OFFICES OF BRAD A. KAUFFMAN, PLLC
Attorney for Plaintiff

BY: 

BRAD A. KAUFFMAN
40 Exchange Place, Suite 1400
New York, New York 10005
(212) 321-7080

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY 10007

POLICE OFFICER JASON SIMMONS (shield #25634)

POLICE OFFICER CHARLIE VIERA (shield #939655)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Date Filed:

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AUNDREY MATTHEWS,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER JASON
SIMMONS (shield #25634), POLICE OFFICER
CHARLIE VIERA (shield #939655) NYPD POLICE
OFFICERS JOHN DOES NUMBERS 1 THROUGH 5
and THE NEW YORK CITY POLICE DEPARTMENT,

Defendants.
-----X

Plaintiff, by his attorney, THE LAW OFFICES OF BRAD A. KAUFFMAN,
PLLC, as and for his Verified Complaint, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law, and the laws of the State of New York.
2. On or about Friday, August 4, 2023 between approximately 4:00 p.m. and 5:00 p.m., plaintiff AUNDREY MATTHEWS was lawfully present at or about Union Square across from Whole Foods, located in New York, New York.

3. At the aforementioned date, time and location, plaintiff AUNDREY MATTHEWS was subject to an unlawful arrest, detention and excessive use of force by defendant police officers.
4. In doing so, said defendant police officers caused plaintiff AUNDREY MATTHEWS physical and emotional injuries, and subjected him to continuing deprivation of liberty until his case was subsequently dismissed on August 11, 2023.
5. Plaintiff AUNDREY MATTHEWS was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code section 8 – 802 and his constitutional, common law and/or statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive and unnecessary force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments of the United States Constitution, the common law and/or the laws of the State of New York.

PARTIES

6. Plaintiff AUNDREY MATTHEWS is a resident of the State of New York.
7. Defendant NYPD police officer JASON SIMMONS (shield #25634) is and was at all times relevant herein employed by defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.
8. Defendant NYPD police officer JASON SIMMONS (shield #25634) is being sued in his individual and official capacity.

9. Defendant NYPD police officer CHARLIE VIERA (shield #939655) is and was at all times relevant herein employed by defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.
10. Defendant NYPD police officer CHARLIE VIERA (shield #939655) is being sued in his individual and official capacity.
11. NYPD police officers JOHN DOES 1 THROUGH 5 are and were at all times relevant herein employed by defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.
12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and/or officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties, and acting for and on behalf of the New York City Police Department with the power and authority vested in them as officers, agents and/or employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and/or agents of the New York City Police Department.
13. Defendant THE CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York, and is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible, and THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and its employment of police

officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. In furtherance of his causes of action brought pursuant to New York State Law, plaintiff filed a timely Notice of Claim against THE CITY OF NEW YORK, et. al. on September 11, 2023, and in compliance with the Municipal Law Section 50 and in accordance with New York State Law.
15. In accordance with New York State Law and General Municipal Law Section 50, plaintiff testified at a hearing held on November 7, 2023.
16. More than thirty days have elapsed since service of said Notice of Claim was filed, and the City of New York failed to pay or adjust the claim.
17. Said Notice of Claim was served within ninety (90) days after the claim arose.
18. This action is commenced within one year and 90 days of the happening of the
19. This action falls within one or more of the exceptions set forth in CPLR Section 1602, involving intentional actions, as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all lower Courts in the State of New York.

STATEMENT OF FACTS

21. On Friday, August 4, 2023 between approximately 4:00 p.m. and 5:00 p.m., plaintiff AUNDREY MATTHEWS was lawfully present at or about Union Square across from Whole Foods, located in New York, New York.

22. At the aforementioned date, time and location, defendant NYPD police officers then physically contacted plaintiff by grabbing his leg when plaintiff was standing on an elevated flower pot/structure.
23. At the aforementioned date, time and location, defendant NYPD police officers then forcibly pulled plaintiff's satchel bag and yanked his leg and threw him to the ground.
24. At the aforementioned date, time and location, defendant NYPD police officers then twisted plaintiff's body and struck and/or kicked him in the head, after which they proceeded to make physical contact with body, head and knees him in the chest and ribs, and placed a knee on his head and neck.
25. At the aforementioned date, time and location, defendant NYPD police officers then unlawfully arrested plaintiff without legal justification and without probable cause.
26. At the aforementioned date, time and location, defendant NYPD police officers then placed plaintiff's hands/wrists in handcuff/zip ties.
27. At the aforementioned date, time and location, defendant NYPD police officers then placed plaintiff on a bus, which proceeded to transport plaintiff to a precinct.
28. At the aforementioned date, time and location, defendant NYPD police officers then took plaintiff to 1 Police Plaza, New York, New York.
29. At the aforementioned date, time and location, defendant NYPD police officers then processed and photographed plaintiff and inventoried his belongings and possessions.

30. At the aforementioned date, time and location, defendant NYPD police officers then took plaintiff to a holding cell.
31. At the aforementioned date, time and location, defendant NYPD police officers verbally abused and/or intimidated plaintiff.
32. At the aforementioned date, time and location, plaintiff was then charged with a variety of crimes, including but not limited to unlawful assembly, obstruction of justice and disorderly conduct.
33. On August 11, 2023, the New York County District Attorney's Office declined to prosecute the aforementioned arrest and charges.
34. As a result of the aforementioned, plaintiff sustained physical, psychological and emotional injuries.
35. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse plaintiff of committing a crime or violating the law in any way.
36. Despite the aforementioned, plaintiff was unlawfully arrested and handcuffed by defendant NYPD police officers without legal justification or probable cause, unlawfully fingerprinted, photographed, processed, searched and/or detained.
37. Some of the police officers defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably using excessive force and failing to properly restrain plaintiff.

38. The unlawful arrest and use of excessive force by the individually named defendant police officers caused plaintiff to sustain physical, psychological and emotional trauma.
39. That at all times hereinafter mentioned, defendants and defendant police officers were agents, servants and employees acting within the scopes of their employment by The City of New York and The New York City Police Department, which are therefore responsible for their conduct and/or omissions.
40. Defendants The City of New York and The New York City Police Department, as employers of the police officer defendants, are responsible for their wrongdoing under the doctrine of respondeat superior.

FIRST CAUSE OF ACTION

Violation of 4th & 14th Amendment Rights/Deprivation of Liberty

41. Plaintiff repeats, reiterates and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
42. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully searched, wrongly detained, falsely arrested and falsely imprisoned and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the 4th amendment of the United States Constitution and to be free of a deprivation of liberty under the 14th Amendment of the United States Constitution.

43. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Imprisonment

44. Plaintiff repeats, reiterates and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

45. The acts and conduct of the defendants constituted false arrest and false imprisonment under the laws of the State of New York, and defendants intended to confine plaintiff and in fact, did confine plaintiff, who was conscious of said confinement and plaintiff did not consent to said confinement, which was not privileged.

46. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to loss of liberty, physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Violation of 4th & 14th Amendment Rights/Excessive Force

48. Plaintiff repeats, reiterates and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

49. The use of excessive force by defendants by, amongst other actions, grabbing plaintiff's leg, forcing him down off the concrete flower pot structure, grabbing plaintiff, kneeling plaintiff and handcuffing plaintiff constituted objectively unreasonable physical seizures of plaintiff in violation of his rights under the 4th and 14th Amendments of the United States Constitution.
50. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to loss of liberty, physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

51. Plaintiff repeats, reiterates and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
52. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, which was utterly intolerable to a civilized community, which negligently caused severe emotional distress to plaintiff, and were direct and proximate causes of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws of the United States and the State of New York.
53. The acts and conduct of defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws of the United States and State of New York.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to loss of liberty, physical, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

55. Plaintiff repeats, reiterates and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

56. Defendants The City of New York and The New York City Police Department and their employees, servants and/or agents acting within the scope of their employment did negligently hire, train, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to loss of liberty, physical, emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

58. Plaintiff repeats, reiterates and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

59. The defendants who did not physically touch plaintiff but were present when other police officers violated plaintiff's constitutional rights had an affirmative duty to intervene on behalf of plaintiff.
60. Defendants failed to intervene to protect the unlawful conduct described herein.
61. As a result of the aforementioned, plaintiff suffered serious, debilitating injuries and his liberty was restricted for an extended period of time and put in fear for his safety, and humiliate and subjected to physical constraints.
62. As a direct and proximate cause of such acts, defendants deprived plaintiff of his rights under the laws of the United States and New York State.
63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to loss of liberty, physical, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Malicious Prosecution

64. Plaintiff repeats, reiterates and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
65. The acts and conduct of defendants constitute malicious prosecution under the laws of the United States and New York.
66. Defendants commenced and continued a criminal proceeding against plaintiff.
67. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges which were charged and/or prosecuted.

68. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to loss of liberty, physical, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Individual defendant officer's violation of plaintiff's AC 8-802 rights

70. Plaintiff repeats, reiterates and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

71. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

72. The acts of the defendant officers caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law 48, NYC Administrative Code section 8-802, to wit: to be secure in his person and belongings against unreasonable search and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

73. Defendant officers, while in uniform, unlawfully seized and searched plaintiff, detained plaintiff, used excessive force in the application of handcuffs and/or restraints and further caused him detention thereafter.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to loss of liberty, physical, emotional and psychological injuries.

NINTH CAUSE OF ACTION**Individual defendant officer's failure to intervene in****violation of plaintiff's AC 8-802 rights**

75. Plaintiff repeats, reiterates and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
76. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
77. The acts of the defendant officers had a duty to protect plaintiff from violations of his rights under 2021 NYC Local Law No. 38, NYC Admin. Code 8-802, to wit: to be secure in his person and belongings against unreasonable search and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
78. Defendants that did not physically touch plaintiff but were present when others violated plaintiff's aforementioned rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.
79. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff from violation of his rights.
80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to loss of liberty, physical, emotional and psychological injuries.

TENTH CAUSE OF ACTION

City-Employer's liability for defendant officer's

violation of plaintiff's AC 8-802 rights

81. Plaintiff repeats, reiterates and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
82. Defendant police officers are "covered individuals" as defined in 2021 NYC Local Law No. 48, NYC Administrative Code section 8-801 in that they are employees of defendants' aforementioned New York City Police Department.
83. The City of New York, as the employer of the covered individual defendant police officers, is liable to plaintiff for the wrongdoing of the covered individual defendant police officers.
84. The acts of the defendant police officers constituted conduct under color of any law, ordinance, rule, regulations, custom or usage.
85. The acts of the defendant police officers caused plaintiff to be deprived of his rights under 2021 NYC Local Law No. 48, NYC Administrative Code section 8-802, to wit: to be secure in his person, house, papers and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
86. The defendant police officers, while in uniform, unlawfully seized, frisked and searched plaintiff before detaining plaintiff, using excessive force in the application of handcuffs or other restraining device, restraining his hands/wrists

behind his back and further causing him to be detained for a certain length of time.

87. By reason of the acts and omissions by the aforementioned defendants, plaintiff has endured physical, emotional and psychological injuries and was otherwise damaged and injured.

ELVENTH CAUSE OF ACTION

City-Employer's liability for defendant officer's failure to

Intervene in violation of plaintiff's AC 8-802 rights

88. Plaintiff repeats, reiterates and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

89. Defendant police officers are "covered individuals" as defined in 2021 NYC Local Law No. 48, NYC Admin. Code section 8-801 in that they are employees of the police department.

90. The City of New York, as the employer of the covered individual defendant police officers, is liable to plaintiff for the wrongdoing of the covered individual police officers.

91. The acts of the defendant police officers constituted conduct under color of any law, ordinance, rule, regulations, custom or usage.

92. Defendant police officers had a duty to protect plaintiff from violation of her rights under 2021 NYC Local Law No. 48, NYC Admin. Code section 8-802, to wit: to be secure in his person, house, papers and effects against unreasonable

searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

93. The defendants that did not physically touch plaintiff but were present when other officers violated plaintiff's AC 8-802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other police officers.
94. Defendants failed to intervene to prevent the unlawful conduct described above, thereby failing in their duty to intervene to protect plaintiff from violation of his rights.
95. By reason of the acts and omissions by the aforementioned defendants, plaintiff has endured physical, emotional and psychological injuries and was otherwise damaged and injured.

TWELTH CAUSE OF ACTION

Violation of Article I, section 12 of the New York State Constitution

96. Plaintiff repeats, reiterates and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
97. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article I, sections 1, 6, 8, 9, 11 and 12, including the following rights:
- i. Freedom from unreasonable search and seizure of his person and property

- ii. Freedom from arrest without probable cause
- iii. Freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion or legal justification, and of which wrongful detention plaintiff was aware and did not consent
- iv. Freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. Freedom from deprivation of liberty without due process of law

98. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges and immunities guaranteed by the New York State Constitution, plaintiff suffered physical, economic, psychological and emotional injuries, as well as a deprivation of liberty.

99. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the individual defendants and any damages they caused under the doctrine of respondeat superior.

100. By reason of the acts and omissions by the aforementioned defendants, plaintiff has endured physical, emotional and psychological injuries and was otherwise damaged and injured.

JURY DEMAND

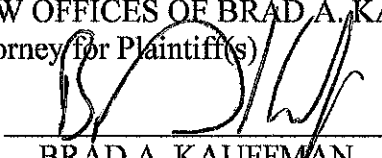
101. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff AUNDREY MATTHEWS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees, inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. section 1988 and 2021 NYC Local Law No. 48, NYC Admin. Code section 8-801 et. seq.

Dated: New York, New York
September 20, 2024

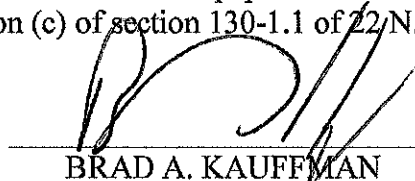
LAW OFFICES OF BRAD A. KAUFFMAN, PLLC
Attorney for Plaintiff(s)

By: 

BRAD A. KAUFFMAN
40 Exchange Place, Suite 1400
New York, New York 10005
(212) 321-7080

CERTIFICATION

To the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of these papers and the contentions herein are not frivolous as defined in subsection (c) of section 130-1.1 of 22 N.Y.C.R.R.


BRAD A. KAUFFMAN

ATTORNEY'S VERIFICATION

BRAD A. KAUFFMAN, an attorney admitted to practice in the courts of the State of New York, and a member in the law firm of attorney for plaintiff(s) in the within action, states the following:

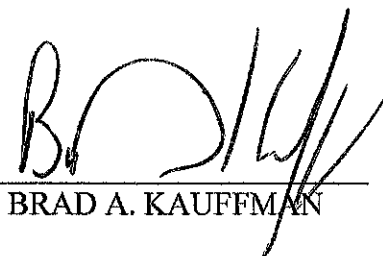
I have read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof; the same is true to my own knowledge except as to the matters to be alleged on information and belief, and as to those matters I believe it to be true.

The reason this verification is made by me and not by plaintiff is because plaintiff does not reside within the county wherein affiant maintains his offices, and/or is otherwise unavailable and unable to verify same.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: interviews with plaintiff(s); investigation and investigatory reports contained in affiant's file.

I affirm that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
September 20, 2024


BRAD A. KAUFFMAN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

AUNDREY MATTHEWS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JASON SIMMONS (shield #25634),
POLICE OFFICER CHARLIE VIERA (shield #939655), NYPD POLICE OFFICERS
JOHN DOES NUMBERS 1 THROUGH 5 and THE NEW YORK CITY POLICE
DEPARTMENT,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

THE LAW OFFICES OF BRAD A. KAUFFMAN, PLLC
Attorneys for Plaintiff
40 Exchange Place, Suite 1400
New York, New York 10005
(212) 321-7080

To

Service of a copy of the within
is hereby admitted.

Dated: _____ 19__

Attorney(s) for

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of an
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order
present for settlement to the Hon.
at

of which the within is a true copy will be
one of the judges of the within named court,
19 at M.

on

Dated, New York, New York

Yours, etc.

THE LAW OFFICES OF BRAD A. KAUFFMAN, PLLC